

Hearing Preparation Guide

Prepare the hearing file, updated arrears position, and speaking points for the possession hearing - with Ground 8 kept under review at both notice and hearing stage

PROPERTY	16 Willow Mews York YO24 3HX
TENANT	Ivy Carleton
COURT	York County Court and Family Court
HEARING DATE	<i>To be notified by court</i>

Notice timeline

The claimant seeks possession of 16 Willow Mews York YO24 3HX relying on Ground 8 (Rent arrears), Ground 10 (Any rent arrears).

Form 3A notice served on 4 March 2026, expiring on 3 April 2026, with proceedings not intended before 3 April 2026.

NOTICE SERVICE DATE	4 March 2026
NOTICE EXPIRY DATE	3 April 2026
EARLIEST PROCEEDINGS DATE	3 April 2026

Court-pack validation summary

DEEMED SERVICE DATE USED	6 March 2026
NOTICE EXPIRY DATE	3 April 2026
EARLIEST PROCEEDINGS DATE	3 April 2026
TOTAL ARREARS	£4800.00
GROUND 8 THRESHOLD	£3600.00
GROUND 8 STATUS	ABOVE

What the court will consider

- ☐ Is the notice valid?
- ☐ Was it served correctly?
- ☐ Do the grounds apply?
- ☐ Are the arrears proven?
- ☐ Does Ground 8 still meet the threshold at the hearing as well as at service stage?

Before the hearing

- ☐ Review the notice, service record, witness statement, and bundle index together so the pack remains internally consistent.
- ☐ Update the arrears schedule and check that the figure to be stated to the judge matches the latest rent account.
- ☐ Check whether the tenant has filed a defence, witness statement, or counterclaim and identify the documents that answer it.

Suggested court bundle order

- ☐ N5 claim form
- ☐ N119 particulars of claim
- ☐ Witness statement
- ☐ Tenancy agreement
- ☐ Form 3A notice
- ☐ N215 or other service evidence
- ☐ Arrears schedule
- ☐ Rent ledger or bank statements
- ☐ Compliance evidence
- ☐ Correspondence, photos, and other exhibits

Tenant defence anticipation

- ☐ Disrepair or set-off.
Check inspection history, repair reports, and whether any sum is said to have been withheld or set off.
- ☐ Payments not credited.
Check the ledger, bank statements, and the updated arrears schedule before the hearing.
- ☐ Wrong service or wrong date challenge.
Check Form 3A, the service record, and every date used in the claim papers.
- ☐ Deposit or compliance challenge.
Check the tenancy file for deposit, safety, and service records that may be relevant to credibility or defence points.
- ☐ Hardship or adjournment request.
Stay factual and keep the focus on notice validity, service, grounds, and the current arrears position.
- ☐ Counterclaim.
Check what has actually been pleaded and what evidence is needed to answer it.

Bring to court

- ☐ Indexed court bundle
- ☐ Original tenancy agreement
- ☐ Form 3A notice
- ☐ Proof of service evidence
- ☐ Updated rent statement and arrears schedule
- ☐ Payment ledger, bank statements, or rent receipts
- ☐ Copies of payment demands or arrears correspondence

Common failure points

- ☐ Inconsistent dates between the notice, N215, witness statement, and claim papers.
- ☐ Missing or unclear service evidence.
- ☐ Arrears figures that do not match the latest schedule or payment history.
- ☐ Issuing before the notice period has expired or before the earliest proceedings date.
- ☐ Using the wrong court or the wrong defendant details.
- ☐ Signing a statement of truth that does not match the current file.

At the hearing

- ☐ Keep submissions short, factual, and tied to the pleaded ground or grounds.
- ☐ Explain the current arrears position, the rent cadence, and the documents supporting the running balance.
- ☐ Be ready to identify what you accept, what you dispute, and which exhibit addresses the point.

Ground 8 should only be advanced as a mandatory ground if the arrears still satisfy the threshold of £3,600.00 at the hearing.

Procedural warnings

- ☐ Do not issue before expiry or before the earliest proceedings date.
- ☐ Verify the court, the claimant names, and the defendant name and address before issue.
- ☐ Update the arrears figure before the hearing if payments are made.
- ☐ Ensure the N5, N119, notice, and witness statement dates match.
- ☐ Do not sign the statement of truth unless the current file is accurate.

If the case changes

- ☐ If the tenant raises disrepair, set-off, or a counterclaim, keep the response anchored to the pleadings and documents.
- ☐ If a payment is made shortly before the hearing, update the figures immediately and reconsider the effect on any mandatory arrears ground.

Date: 5 May 2026